



ories of Life. Love and

UNE
16

Adventure

15 Cents
THE UNIVERSITY
OF TEXAS
FEB 15 1943
THE LIBRARY

*A "Dan Wheel
Novelette
by D^r J. I. Cochran*
*A Powerful Tale
of the
Lumber Camp
by Harry Owen*
Sam^l Alexander Wh
Hugh S. Fullerton
Rob^t J. Pearsall
W^m Dudley Pello
and Othenoogle

ories of Life, Love and

VINE
1916

Adventure

15 Cents
THE UNIVERSITY
OF TEXAS

FEB 15 1943

THE LIBRARY



A "Dan Wheel
Novelette
by D^r J. I. Cochran

OR
A Powerful Tale
of the
Lumber Camp
by Harry Owen

OR
Sam! Alexander White
Hugh S. Fullerton
Rob^t J. Pearsall
W^m Dudley Peller
and Othenoogle

The Project Gutenberg eBook of Derelicts of the hills

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Derelicts of the hills

Author: W. C. Tuttle

Release date: May 27, 2025 [eBook #76171]

Most recently updated: July 1, 2025

Language: English

Original publication: New York: The Ridgway Company, 1916

Other information and formats: www.gutenberg.org/ebooks/76171

Credits: Roger Frank and Sue Clark

*** START OF THE PROJECT GUTENBERG EBOOK DERELICTS OF
THE HILLS ***

DERELICTS OF THE HILLS



By
W C Tuttle

DERELICTS OF THE HILLS

By W. C. Tuttle
Author of “Magpie’s Nightbear”

Now, I reckon yuh had to come clear up here to tell me that th’ grub is on th’ table, eh? Of all th’ gol dinged——”

The grumbler turned from his inspection of the three split fuses in the gopher hole and cast a baleful glance in my direction. He spat against the side of the cut and smiled after looking me over from new sombrero to riding boots.

“Ex—cuse me, stranger,” he grunted, climbing out of the hole and wiping the day off his hands on his weather-beaten overalls. “I shore thought yuh was Magpie. Yuh see we ain’t used to havin’ strangers hereabouts. Magpie’s my pardner and he’s supposed to be down at th’ cabin gittin’ dinner.”

“I saw a man sitting on a log down the trail a ways as I rode up,” I remarked. “Seemed like a curious kind of a person. Wouldn’t talk at all. Just sat there and gazed off across the hills.”

“‘Bout six feet long and ten inches wide—sort of uh roan with sparsely settled whiskers?” asked the prospector.

“Exactly,” I agreed. “I noticed particularly the moth-eaten hirsute gathering and also the immense distance from the lobe of his right ear to his rear suspender buttons.”

“Haw, haw!” exploded the prospector. “Suspender buttons! Haw, haw! Dog-gone good thing yuh didn’t mention suspender buttons to him, ’cause he’s sort a sensitive over such trifles. Uh-hu,” he grunted reflectively, “that was Magpie Simpkins, shore was. Did yuh say he didn’t seem to be lookin’ at anything particular—jist sorta lookin’?”

I assured him that as far as I was able to discern there was nothing about those mesquite-covered hills to cause a man to focus on one certain spot for an indefinite period of time, oblivious to all material matters.

“There’s one or two words in th’ American langwidge I ain’t never been introduced to,” he replied, “and jist now yuh used ’em all in uh heap, but I gits th’ drift. Magpie’s trancin’.”

“He’s what?” I asked.

“Trancin’,” he repeated, with a wide smile. “Anyway, I reckon that’s what it’s called. Yuh see, this pardner uh mine yuh gazes on down there has got th’ idea he can commune with th’ speerits, and I reckon he’s down there tryin’ to raise uh ghost.”

“Go ahead and laugh,” he continued, when I smiled. “Mebby it sounds funny to you, but, dog-gone it, you ain’t never been partners to uh scientific loco human or yuh would jist shed uh tear and wish me well. Jist lemme tell yuh something now. I been— Say, I plumb forgot to ask yuh if yuh was lookin’ fer some one up here, stranger. My name is Harper—christened when I was young and plumb helpless with th’ appellation of Wellington Alexander, which same ain’t no title fer uh sourdough. Th’ first pardner I had rubbed it all out and called me Ike.”

“My name is Frederick Norwood,” I replied, and smiled with Harper. “My family are of the old English stock, and believed in saddling a child with all the names in the family record, and as names were dirt cheap at the time of my christening they never stopped at one little old middle name.”

“Jist lookin’ over th’ mineral wealth of this great and glorious country, eh?” reflected Harper, as if I had made that statement but corrected his presumption by adding, “That’s all there is to ever bring uh feller north uh Piperock.”

“I’m looking for a fellow by the name of Woods,” I stated.

“Tellurium Woods?” asked Harper.

“I believe that is what he’s called. I stopped at the Empire Hotel at Piperock and the proprietor, a Mr. Jones, directed me up here. It’s a queer thing, but the description he gave me seems to cover the man I saw down the trail—your partner, Mr. Simpkins.”

“Uh-ha,” he agreed. “I reckon it would. Yuh see, this Cobalt Jones thinks he’s funny. He expected yuh to spring it on Magpie. Mebby you’d have got past with it, bein’ as Magpie’s in uh trance, but I’d shore hate to try it. Yes, sir, I reckon it would have laid the ghost.”

“Would you mind explaining?” I asked. “I come up here to look over a copper prospect for some Eastern parties—property belonging to one Tellurium Woods, whose description fully covers the party you assure me is Magpie Simpkins, an embryo spiritualist. Also, that he’s sensitive to suspender buttons.”

“Mister Norwood,” said Harper, biting off a fresh chew, “I sent Magpie down to th’ cabin to cook uh pot uh beans about two hours ago, and knowin’ th’ animile as I do I’ll bet uh dobie dollar that he’ll start that fire in about two hours more. Also, bein’ as I ain’t in no hurry to shoot them three measly blasts, which won’t uncover nothin’ but shovel work, I’ll tell yuh what and why fore.

“Yore time ain’t worth no more than mine, I figure cause yuh won’t find Tellurium Woods in this country no ways, so lets me and you mosey over under that big mesquite and I’ll wau-wau yuh th’ hull thing.”

We reached the comfortable spot indicated, and he began:

Uh course Magpie ain’t his right name. He got that name ’cause one time he gits lost in th’ Bitter Roots and near starves to death. Shot all his ca’ttridges away tryin’ to kill uh magpie—th’ same bein’ classed with coyotes and buzzards as eatables—in uh country where blue grouse is thicker than fleas on uh pet coon.

I been pardners with Magpie for ten years now and I knows that jasper jist like I knows astronomy. Th’ milk uh human kindness jist plumb bogs him down at times, and as a pardner he assays big; but when it comes to doin’ useful things he don’t show uh trace.

First he tries hypnotism. Tried it on uh wildcat in uh spruce-tree, but somehow th’ cat didn’t sabe th’ play. If yuh ask him he’ll show yuh where he was boloed down in th’ Philippines. That was ten year ago that I met him in th’ hospital in Helena and we went to Nome together.

Man, that human string-bean has dabbled in all kinds of scientific stuff. He took up Christian Science and played her four ways from th’ jack, but one time he gits an ulcerated tooth and shifts his affections to psychology.

That shore was an affliction. He suffered from that fer uh year. Psychology goes bust when he salts uh feller’s mine with copper to make said miner work harder, and some sucker come along and buys th’ mine on

th' strength of th' "salt" for five thousand—said mine-owner bein' that same Tellurium Woods yuh pilgrims up here to see. I know this is stringin' th' what and whyfore out pretty long, but I wants yuh to git an idea of this pardner uh mine.

I'm sittin' in front of our cabin uh couple uh months ago and watchin' th' sun set behind th' Medicine Men peaks and keepin' one eye on th' trail. Magpie's been down to Piperock fer seven days—which same trip after grub don't take more than two days. I'm down to greasin' th' fry-pan with uh ragged bacon rind, and th' coffee has been boiled so darn much it tastes like stewed gunnysack. In other words there ain't enough grub in th' shack to feed uh hummin'bird's offspring.

Long about that time I hears uh jackass brayin' down th' trail and 'long comes Magpie and them three pack-jacks and all four uh them animiles is singin'. Th' jacks is singin' 'cause they knows th' packs is soon to come off, but I ain't hep to what makes Magpie so care-free—him usually bein' too deep in thought to sing above a whisper.

"Top uh th' evenin' to yuh!" yells Magpie, as they gits in range of th' wickiup.

I jist grumbles somethin' about starvin' to death and workin' my fool head off while others take singin' lessons, but Magpie jist sighs deep and helps take th' packs off. I don't see no new books in th' packs, and I'm uh heap relieved.

"Feels sort a lonesome like up here," states Magpie, while I'm busy linin' my spare-ribs with good bacon and beans.

"Uh-ha," I agrees between mouthfuls, "especially after sojournin' in th' city fer quite uh spell." Piperock bein' all of uh hundred souls, six Chinks and uh small Greaser settlement.

"Ike," sez he, after uh long spell uh silence, "did yuh ever think what uh lot uh life we miss livin' thisaway?"

I'm too busy eatin', so he continues!

"Sort a shut off from th' society uh wimmen, and all that. Th' more I think about it th' more it appals me. No place to go, nothin' to do. Dog-gone it, Ike, we're jist uh pair uh deerylicks on th' hills uh life, you and me. Jist driftin' and driftin' ——"

“Well, gol dang it, Magpie,” sez I, “that’s th’ only reasonable way fer uh poor man to git depth. Uh course if yuh think we’ll hit it any sooner by sinkin’ uh shaft, why——”

“Ike Harper,” states Magpie, sort uh lofty like, “yuh got uh soul like uh packburrow. All yuh knows is to eat and work. Yore thoughts don’t soar higher than th’ top of th’ table. I’m sorry fer yuh, Ike, ’cause uh feller uh yore plebian tastes can’t appreciate life. This life we’re follerin’ leads but to an unmarked grave. Don’t yuh ever git th’ soul hunger a-tall, Ike?”

“Mebby not soul hunger,” I replies, “but I’ve been out of beans and bacon fer two days now.”

Magpie plumb ignores this last, and ruminates deep.

“Ike,” sez he after while, “there ain’t much use askin’, but did yuh ever figger any on th’ wimmen question?”

I replies sort a offhand-like that I oncet knowed uh squaw down Yuma way, but I never finished th’ romantic discourse ’cause Magpie looks me over with th’ same look in his eyes that he had jist before I starts wearin’ fresh meat on my right eye once.

“Mr. Harper, I asked yuh that question thinkin’ that perhaps yuh had uh tiny spark uh mentality on top of yore neck, but I finds that I’m all wrong. I grieves for yuh, Ike.”

I swallows my chew tryin’ to make uh snigger sound like uh yawn, but Magpie don’t notice and keeps on ramblin’ in th’ same vein.

“Ike, didn’t yuh ever think about comin’ home at night and find uh pretty wife waitin’ supper for yuh. One with eyes th’ color of th’ deep places in Sawtooth Lake and hair like th’ sunset on th’ Medicine peaks. Some one to love yuh, Ike, and clean up th’ cabin and make yuh quit wearin’ nails to connect yore suspenders to yore pants.”

Magpie sighs clear down to th’ bottoms of his boots and fumbles fer th’ makin’s after deliverin’ this oration.

I takes uh fresh chew and asks friendly-like—

“When did she come to Piperock, Magpie?”

“Week ago last—say, who yuh talkin about?”

“That new blue-eyed, yaller-haired waitress at Cobalt Jones’ hashery.”

“Yuh danged old sourdough sleuth!” yells Magpie, but seems tickled uh heap to think I done guessed it. “How did yuh ever figger it out, Ike?”

“Magpie,” sez I, sort uh patronizin’ly like, “I may be of uh low order of intelligence and never suffer none from th’ soul hunger, but by golly, I’m kumtux on this here love stuff. Th’ little jasper with his bow and arrer shore beat yuh on th’ draw, old-timer.”

Magpie don’t deny it none. Jist set there and grins and rubs his hands over his boots like they hurt his feet.

“Bein’ as there ain’t much to do around here,” he opines after while, “I reckon I’d sort a like to go down to Piperock in th’ mornin’. Yuh can make out uh list uh what yuh wants and—”

“Say, what’s th’ idea?” I cuts in. “Yuh jist gits in with enough to last uh month or more.”

Magpie gits up sorta weary like and as he shuffles into th’ cabin he makes th’ following statement:

“I reckon that’s right, pardner, but I gotta go back right away. Yuh see I’m goin’ to marry her, and I plumb forgot to ask her—sorta forgot it, I reckon.”

The next mornin’ Ike lights out down th’ trail with th’ rest of th’ pack-jacks and I don’t see him for four days. When he comes driftin’ in about sundown on th’ fourth day he’s smilin’ all over his face as he comes up th’ trail to th’ cabin. He shakes my hand sorta excited-like and tells me I’m lookin’ skookum.

“Ike,” sez he, “I went and done it.”

“Got married?” I asks.

“Not yet, but soon. I’m goin’ to enter th’ solemn and holy bonds uh matrimony and wedlock next Tuesday.”

“Uh course,” sez I, “not havin’ been uh pardner uh yours fer more than ten years and not havin’ saved yore worthless life more than once uh year, it would be presumptuous I suppose to inquire what name this unsuspectin’ female person answers to.”

“Her name is Minnie,” he replies.

“I read about uh female named Minne Haha oncet,” I states, sorta offhand-like.

“This one answers to Summers,” he tells me, “and she’s some girl! Uh danged old sourdough like me ain’t noways fit fer her, Ike, but dog-goned if she didn’t tell me she loved me.”

He does uh portion of th’ Piegan wardance on th’ wood-pile and then chases th’ burrows clear down to th’ crick. I reckon love must be worse than loco weed, ’cause he’s already pilgrimed over twenty-five miles uh rough trail that day.

“Git uh ring?” I asks when he comes back.

“Did I!” he yells. “Well, yuh better believe I did. Paid uh hundred and fifty fer uh diamond as big as uh pants button and she’s set in uh gold ring she can’t wear out in uh lifetime. Bought it off Slim Jackson, th’ faro dealer at th’ Mint.

“I wanted to tie up right away, Ike, but she said next Tuesday. Yuh see she wanted to buy uh troosoo and all that kinda stuff. She was uh little shy on money, so I lends her uh couple a hundred—gives it to her, I mean. By golly, Ike, she can have all I got! Why don’t you git married, too, and then we’ll all live in th’ same wickiup, Ike?”

“See anybody else down there?” I asks, ignorin’ his foolish question.

“Let’s see—uh-ha, I seen that danged ol’ woodchuck, Tellurium Woods. He’s back again and was all dressed up like uh plush horse. Even had them cloth things over his shoes and smokin’ uh seegar. Darn old misfit’s sailin’ high with th’ money I made for him by saltin’ his old copper prospect. I meets him on th’ street, but him and me don’t wau-wau none a-tall. Honest, Ike, I gotta plumb sit on my gun hand every time I sees his onery ol’ face.”

Well, sir, from that time Magpie don’t exhibit no more brains than uh fool-hen. When he ain’t sighin’ way down in his boots he’s singin’—that is, he’s yellin’ th’ words uh two songs and th’ tune uh neither. And when he ain’t doin’ that he’s oratin’ about bungaloos, geeraniums and chiny dishes. I’m plumb disgusted with him. When uh feller uh Magpie’s type gits in love it’s worse than uh floatin’ kidney—yuh kin anchor th’ kidney.

On Sunday night he can’t seem to sleep none, and finally gits up and leaves th’ cabin, and don’t come back until I’m jist about finished eatin’ breakfast.

“Beautiful night, Ike,” sez he. “Finest moonlight I ever seen.”

“Magpie Simpkins,” sez I, “yore as crazy as uh shepherd, and if yuh don’t shake yourself it will only be uh few moons until yuh will be drillin’ fer soap in th’ asylum at Warm Springs. Far be it from me to laugh at love, pardner, but I’ll be hanged if I’ll stand fer yuh kissin’ that old he burrow. He’s half mine and——”

“Ike,” sez he, reachin’ absent-mindedly fer th’ ax, “that’s uh danged lie. I never kissed uh jackass in my life.”

“Then yuh shore got th’ edge on Minnie,” I returns, and beat th’ ax to th’ corner of th’ cabin by uh hair.

One nice thing about Magpie is th’ fact that he don’t hold uh grudge and I’m safe to come back in an hour.

Uh course I’m elected to be th’ best man at this weddin’, which means I’ll have to git my boots greased, buy uh new necktie and keep reasonably sober. Also, I’ve got to stand in front of th’ Gospel Peddler alongside uh Mrs. Cobalt Jones—th’ same bein’ several degrees worse to look at than th’ squaw I knowed down at Yuma.

The day before th’ happenin’, that bein’ uh Monday, me and Magpie packs th’ burrows and hits th’ trail fer Piperock. Magpie drills along uh mile or two in front until we gits almost in sight uh town and then he drops back and sits down on uh boulder.

“Ike,” sez he, wipin’ his face on his sleeve, “I’m gittin’ plumb nervous. Sorta gun-shy, I reckon. Th’ more I thinks about it th’ worse it seems. I wants to git married, Ike, but every time I thinks about me bein’ up there in front uh that preacher feller and sayin’ ‘I do,’ dog-gone it, I gits buck fever.”

“Well, old-timer,” I remarks, “here’s uh good place to turn th’ outfit around and make uh getaway.”

“Not any a-tall!” sez he. “I don’t buy diamonds and loosen up my roll fer uh troosoo and then stampede. Lead on, McDuffy, and danged be he who first yells I gotta plenty!” Which is uh favorite sayin’ of Magpie’s.

I prods th’ leadin’ jack and we pilgrims on down th’ trail toward town.

We’re almost into Piperock when we sees uh little feller comin’ ploddin’ up th’ trail toward us. He’s sort of uh runty little party with rusty whiskers

and most awfully bowlegged, and when he gits closer we sees that he's packin' uh sawed-off ten gage shotgun.

He stops uh few feet in front of us and shifts th' hardware to cover our hull outfit.

"Say," sez he, "which one uh you specimans is Tellurium Woods?"

"Yuh danged little imitation of uh crokay wicket!" yells Magpie, droppin' th' lead rope and startin' forward, but th' riot gun covers him and he stops sudden like. "What do yuh mean by that question?" he roars.

"Hurry up and answer!" roars bowlegs right back at him.

"Neither of us is that polecat!" snaps Magpie. "And what is more and conclusive, I kin lick you and th' funny party or parties that sent yuh out here to ask it."

I sees that th' little feller is sorta overcome like, and not knowin' how easy that scatter gun is on th' trigger, I steps in sorta soothin' like and tells him who we are.

"What do yuh want of Tellurium?" I asks.

"Dang his measly hide!" wails th' feller. "I aims to shoot his old hide into shoestrings. I'm plannin' to pulverize his system with buckshot and I'm hopin' this here gun don't scatter so much that he will miss any of th' contents."

"And th' reason fer his demise?" I asks.

"Dang him, he done stole my wife!" yells th' little feller.

"Tellurium Woods stoled yore wife?" parroted Magpie, reachin' over and appropriatin' th' hardware. "Well, well, don't cry, little feller. Any danged woman that would run away with that old hedgehog ain't worth cryin' over a-tall. Come on back and have uh drink. Uh drink uh hooch will make th' world seem brighter."

"I know I'm foolish," he agrees, "but it ain't a square deal. We been married over five year now and she's been uh kind, lovin', thoughtful wife until now. We was in business down to Curlew, and when th' mines shut down our business went busted and so did we. She gits uh job up here and I stays there to settle up th' business, and when I comes up here she's gone. Dang it all," I sez to her when she was leavin', 'Minnie,' sez I. 'when yuh gits——'"

“What name?” interrupts Magpie.

“Minnie,” sez th’ little one. “My name is Summers, Gus Summers, and I sez to her——”

Magpie shoves th’ gun back into th’ little feller’s hands and pats him on top of his rusty old derby hat.

“Good huntin’ and good luck to you, Summers, old scout,” sez Magpie, who is jist uh little white around th’ gills. And then he kicks th’ lead burrow in th’ wind and turns him around toward th’ back trail.

We gits about half-way back to th’ cabin when Magpie stops to fill his pipe.

“Ike,” sez he, “that Tellurium Woods is uh——”

“Friend in need,” sez I. “Fifteen buckshot to uh shell, and two shells, make thirty holes.”

Magpie is silent fer quite some spell and then he sticks out his hand with uh smile.

“Ike, old pardner, shake. We may be deerylicks uh th’ hills, me and you, but—say, did yuh notice her husband was wearin’ bailin’ wire instead uh pants buttons?”

“Say, I been noticin’ smoke comin’ out of th’ stovepipe for quite uh spell, Mister Norwood, so I reckon Magpie’s normal once more. Come on down and taste beans cooked scientifically.”

Transcriber’s Note: This story appeared in the June, 1916 issue of *Adventure* magazine.

*** END OF THE PROJECT GUTENBERG EBOOK DERELICTS OF
THE HILLS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual

work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in

the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of

exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b)

alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up

to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.